

C.C.R.B CASE CLOSING FORM

Investigator assigned: Hughes		Team: 1	CCRB#: 9802403	☒ Force ☐ Discourtesy ☐ Abuse ☐ O.L. ☐ Injury
Date of incident: 5/27/98	Time of incident: 7:00 PM	Location of incident: § 87(2)(b)	Pct. of occurrence: 046	Date S.O.L. Expires: 11/27/99
Date reported: 5/29/98	Time reported: 4:42 PM	To whom/where/how reported: Complainant was a walk-in to CCRB		
Complainant: § 87(2)(b)		Home address: § 87(2)(b)		
Victim(s): Same as above		Home address:		
Witness(es): none		Home address:		
Subject officer(s) (include rank): PO Peter Holness PO Philip Rivera		Shield: 15764 26894	Tax: 915903 916539	Command: 046 046
Witness officer(s) (include rank): N/A		Shield:	Tax:	Command:
Allegation(s) by letter: A) PO Holness used excessive force when he grabbed the complainant's arm, in violation of Patrol Guide 104-01. B) PO Holness used excessive force when he tightened the complainant's handcuffs, in violation of Patrol Guide 104-01. C) PO Rivera used excessive force when he grabbed the complainant's arm, in violation of Patrol Guide 104-10.				Recommendation(s): § 87(2)(g)

Synopsis

This case is being submitted as a full investigation § 87(2)(g)

§ 87(2)(b) a teenager in the complainant's building, and several other youths, knocked on the complainant's door. When the complainant answered the door the group took off. § 87(2)(b) went into her apartment and grabbed a butcher knife and threw it at § 87(2)(b) Police responded to the location and attempted to arrest § 87(2)(b) she resisted and the necessary physical force was used to effect the arrest.

Summary of Complaint

§ 87(2)(b) the complainant, answered her doorbell. When she did, she saw several teenagers running from her apartment. According to § 87(2)(b) this had occurred on several occasions. On this particular occasion, she was very angry and yelled after the youths that she was going to “cut their legs off with a meat cleaver.” She then went back into her apartment. A little later four to six police officers arrived at her home. § 87(2)(b) allowed the officers into her apartment. The officers came in and pushed her up against the wall and handcuffed her. She was then taken to the 46th precinct and arrested

§ 87(2)(a) 160.50

§ 87(2)(a) 160.50

§ 87(2)(b)

In addition, a temporary order of protection was issued against § 87(2)(b)

for § 87(2)(b)

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Results of Investigation

PO Holness and Rivera were the first officers to respond to the location. When they arrived at the apartment building, they were met by § 87(2)(b) and her mother. § 87(2)(b) told PO Holness that she and her friends had rang § 87(2)(b) doorbell and then ran off. When § 87(2)(b) answered the door, she saw § 87(2)(b) running down the hall and § 87(2)(b) said, “next time I’ll cut off your legs” and then threw a meat cleaver at her. § 87(2)(b) ran into her apartment § 87(2)(b) and told her mother what occurred. PO Holness and Rivera responded to the location and while they were speaking to § 87(2)(b) several back-up officers arrived at the scene. PO Holness and Rivera knocked on the complainant’s door. They were the only officers that had verbal interactions with § 87(2)(b). The two officers and the complainant confirmed this fact. The officers entered the apartment and asked § 87(2)(b) where the meat cleaver was. § 87(2)(b) did not answer PO Holness, but rather walked into her kitchen, which is tiny. PO Holness and Rivera were directly behind her and the other officers followed, but did not all fit into the kitchen. § 87(2)(b) reached between the stove and the refrigerator and picked up a meat cleaver. § 87(2)(b) lifted the meat cleaver in a quick upward motion. This motion alarmed PO Holness and Rivera. The officers’ reaction was to grab the complainant’s arms. § 87(2)(b) would not drop the meat cleaver, and being that the complainant was a large woman, the two officers had to push her against the wall to make her drop the meat cleaver. In allegations A and C, PO Holness and Rivera admit to grabbing § 87(2)(b) and pushing her to the wall, in a effort to remove the meat cleaver from her and to restrain her. § 87(2)(g) The officers then tried to pull her arms behind her to handcuff her; the complainant resisted and kept twisting and turning. Eventually, the officers got the complainant’s hands behind her and handcuffed her.

PO Holness and Rivera walked § 87(2)(b) to their RMP. PO Rivera drove and PO Holness sat in the back with § 87(2)(b). The complainant was crying, shouting and twisting and turning. The complainant was yelling that the handcuffs were hurting her wrist. PO Holness told her to stop moving around, because as she moves the cuffs become tighter on their own. § 87(2)(b) would not calm down and the cuffs were irritating her on the five-minute ride to the precinct. PO Holness called an ambulance to the station house, but she refused to receive medical attention. In allegation B, PO Holness stated that he did not tighten the handcuffs on § 87(2)(b) but rather he did not double lock them, to prevent them from getting any tighter, and as the complainant kept moving around the handcuffs became tighter. § 87(2)(g)

Conclusions and Recommendations

§ 87(2)(g)

Investigator:	<u>Carroll Hayes</u>	Date:	<u>2/24/99</u>
Supervisor:	<u>James S. Tolan</u>	Date:	<u>2/24/99</u>
Reviewed by:	<u>James S. Tolan</u>	Date:	<u>2/24/99</u>
Reviewed by:	<u></u>	Date:	<u></u>